



Artiom Kovnatsky <skovnats@gmail.com>

Data Subject Access Request (GDPR Art. 15) and Statement of Reasons Request (DSA Art. 17) — Account 'skovnats' [skovnats@gmail.com] / Support Ticket #4253477

2 messages

Artiom Kovnatsky <skovnats@gmail.com>

Fri, Jun 26, 2026 at 11:11 AM

To: privacy@github.comCc: GitHub Developer Support <developer@githubsupport.com>, dpo@github.com

Berlin, 25 June 2026 GitHub, Inc., 88 Colin P. Kelly Jr. Street, San Francisco, CA 94107, USA — and, as EU controller / EU establishment / EU representative — GitHub B.V., Prins Bernhardplein 200, 1097JB Amsterdam, The Netherlands — and Data Protection Officer (dpo@github.com)

Dear GitHub Privacy Team and Data Protection Officer,

I am the data subject and account holder 'skovnats' (Registered email: skovnats@gmail.com; Linked PayPal billing identity: artiom.kovnatsky@gmail.com; Wirtschafts-Identifikationsnummer: DE405667512). The substantive subject-matter of this request is the temporary restriction of my account between approximately 7 April 2026 and 24 April 2026 (Support ticket #4253477).

Part A — Request under Article 15 GDPR Pursuant to Article 15(1) GDPR, I request access to my personal data and the following information:

- The purposes of the processing of my personal data, including any processing connected to abuse detection, integrity/anti-abuse systems, account restriction, and automated decision-making.
- The categories of personal data concerned, including but not limited to: account profile data, access and session logs, billing data, any moderation or trust-and-safety records, any classifier outputs or signals applied to my account, and all internal notes or escalations relating to my account (incl. ticket #4253477).
- The recipients or categories of recipients to whom my personal data have been or will be disclosed.
- Legal basis — identity of recipients. I rely on Art. 15(1)(c) GDPR as interpreted by the Court of Justice of the European Union in Case C-154/21, RW v Österreichische Post AG (judgment of 12 January 2023): the data subject is entitled, upon request, to the actual identity of the recipients of their personal data, not merely the categories of recipients. I therefore request the specific identities. An incomplete or evasive response will be treated as a failure to respond within the meaning of Art. 12(3) GDPR, and I reserve the right to lodge a complaint with the competent supervisory authority under Art. 77 GDPR.

- Where the personal data are not collected from me directly, any available information as to their source (Article 15(1)(g) GDPR).
- Meaningful information about the logic involved in automated decision-making, the significance and envisaged consequences, the input features considered, the output(s) generated for my account, and human-review records (Article 15(1)(h) and 22(3) GDPR).

Part B — Request under Article 17 DSA Pursuant to Articles 17(1) and 17(3)(a)-(f) DSA, I request a written statement of reasons for the restriction containing:

- The facts and circumstances relied on, including whether the restriction was triggered by a content-based signal, an account-behaviour signal, or a third-party notice (Art. 17(3)(b) DSA).
- Information on the use of automated means in taking the decision (Art. 17(3)(c) DSA).
- A reference to the legal ground or contractual ground relied on (Art. 17(3)(d)-(e) DSA).
- The "Permanent Unique Identifier" (PUID) of the statement of reasons.

I hereby formally submit a complaint under Article 20 DSA against the restriction of 7-24 April 2026, and request access to the procedure.

Specific items requested

- (a) The internal record of the actions applied to the account between 1 March 2026 and 30 April 2026, with timestamps (UTC), action type, applied scope, and unique system identifiers.
- (b) The identity, version, and operating description of any classifiers, heuristics, or rules whose output contributed to the actions.
- (c) The records of human review that preceded the action and its reversal.
- (d) Any third-party notice, report, or signal that contributed to the action.
- (e) The Statement of Reasons under Article 17 DSA and its PUID.
- (f) The complete record of Support ticket #4253477.
- (g) The technical type and operative architecture of the restriction applied to the account and/or its repositories, including whether it consisted of, or included, any visibility, discoverability, or stealth („shadow“) restriction (e.g. de-indexing, demotion, metadata isolation) as opposed to or in addition to a full account block. Please explain specifically why third parties encountered technical barriers — connection timeouts, access errors, or file/PDF rendering or download failures — when attempting to view, fork, or download files from my public repositories during the period, while the account interface internally

displayed normal operational status.

- (h) The complete output of the anti-abuse / spam classifier(s) applied, including:
 - (i) the specific category label, the severity/risk score, and the probability or score threshold triggered; and (ii) the specific item that triggered the automated flag — identifying the commit hash, the individual file path within that commit, and/or the account/traffic signal concerned. If more than one trigger contributed, identify each.
- (i) The human-review log and system audit trail, including: (i) the UTC timestamps at which the automated alert was generated and at which it was assigned to a human reviewer; (ii) the internal system identifier or pseudonymous identifier of the reviewer (the reviewer's personal name is not requested); (iii) the duration of the reviewer's access to my files, repositories, and account metadata; and (iv) the reviewer's findings, internal tags, or system notes that led to the restriction and to its subsequent lifting.
- (j) Standard procedure and benchmarks: a description of your standard procedure for automated abuse/spam detections of this category — including whether and at what stage such detections are escalated to human review — your median processing time (SLA) from initial automated detection to human review and to action, and your notification policy, in particular why no contemporaneous notice or statement of reasons was issued to me at the moment any external-visibility restriction took effect (cf. Art. 17(1) and (3) DSA).
- (k) Third-party, governmental, and law-enforcement involvement (Art. 15(1)(c) and (g) GDPR; Art. 16 DSA). Please confirm whether the action taken in respect of the account 'skovnats' or its repositories was triggered by, contributed to by, or accompanied by any communication from a third party — including any private entity, any notifier under Art. 16 DSA, any security contractor, or any governmental, administrative, intelligence, or law-enforcement authority of any jurisdiction. If so, please provide, to the extent not prohibited by a specific and identified legal restriction: (i) the date and UTC timestamp of the communication; (ii) the identity or category of the originating entity; (iii) the legal or statutory basis invoked; and (iv) the specific processing or restriction requested or carried out as a result. If you withhold any such information, please identify the specific legal provision authorising you to do so.
- **(o) Data Protection Impact Assessment (Art. 35 GDPR).** Please provide the non-confidential summary or relevant excerpts of the Data Protection Impact Assessment (DPIA) conducted for the automated abuse-detection, spam-filtering, and account-flagging systems applied to my account. I specifically request the findings concerning the assessed risks, error rates, and mitigation measures regarding false-positive restrictions.
- **(p) Data Portability (Art. 20 GDPR).** Please provide a machine-readable export (e.g., in JSON or XML format) of the exact state of my account metadata—and, where applicable, repository metadata—during the exact period the restriction

was active. This export must include all internal database flags, visibility states, system tags, and moderation labels assigned to the account at that time.

(q) Systemic Error Rates and Proportionality (Art. 15 and 23 DSA). To enable an assessment of the proportionality and diligence of the automated measures applied, please provide the specific statistical error rate (false-positive rate) of the exact classifier, filter, or rule version that triggered the restriction on my account, as evaluated in your most recent quality assurance, algorithm training, or systemic risk assessments.

Please provide the response in a commonly used electronic form within one month of receipt (Article 12(3) GDPR).

P.S.

Rule of Interpretation in the Spirit of the Law [for all documents-requests]

Should any technical or legal terms used in the enclosed requests allow for multiple interpretations, I demand that you strictly apply the interpretation that most fully satisfies the spirit of the law (IFG, DSA, GDPR), the principle of transparency, and the maximum protection of human rights. Any deliberate exploitation of definitional gaps to withhold data will be treated as bad-faith obstruction of the truth.

Yours sincerely,

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Regards | MfG

Dr. Artiom A. Kovnatsky

www.artiomkovnatsky.com | Founder [S.V.E.](https://zenodo.org/communities/sve) | <https://zenodo.org/communities/sve>

On Thu, Jun 25, 2026 at 11:06 PM Artiom Kovnatsky <skovnats@gmail.com> wrote:

Dear GitHub Privacy / Trust & Safety Team,

I am the holder of the GitHub account 'skovnats'. GitHub Support confirmed on 24 April 2026 that my account had been flagged by GitHub's automated abuse-detection systems and that the restriction was subsequently cleared after manual review.

I am assessing legal proceedings in connection with that restriction and the subscription charges levied during it. I therefore formally request that GitHub preserve, and refrain from deleting, altering, anonymising, or overwriting, all records relating to my account and to the moderation action, in particular:

- (a) all access logs (IP addresses, User-Agent strings, session timestamps) for the period 01.03.2026 to the present;
- (b) all automated classifier/filter outputs, scores, thresholds, category labels and rule identifiers applied to the account, with the exact UTC start and end timestamps of the restriction;

- (c) any third-party reputation, blocklist or IP/CIDR-neighbourhood signal consulted, including the source and the value returned;
 - (d) all human-review records preceding or following the action;
 - (e) all internal tickets, notes and communications (incl. ticket #4253477);
 - (f) the statement of reasons issued under Art. 17 DSA and its Transparency-Database identifier (PUID);
 - (g) all billing records for the affected period (charges of 09.04.2026 and 09.05.2026).
- + Other relevant data/metadata not mentioned.

Legal basis: the above data are relevant to contemplated proceedings. Under German civil procedure, the destruction of evidence whose relevance has been notified (Beweisvereitelung) entitles the court to draw adverse inferences and may reverse the burden of proof. I further invoke my right to restriction of processing under Art. 18 GDPR with respect to these records, so that they are retained and not erased pending resolution.

Please confirm in writing within 14 days that these records are preserved. This notice is without prejudice to my separate requests under Art. 15 GDPR and Art. 17 DSA, and to all further rights.

Yours sincerely,

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Regards | MfG

Dr. Artiom A. Kovnatsky

www.artiomkovnatsky.com | Founder S.V.E. | <https://zenodo.org/communities/sve>

On Fri, Apr 24, 2026 at 1:52 AM GitHub Developer Support <developer@githubsupport.com> wrote:

Please do not write below this line

Your request ([Ticket 4253477](#)) has been updated.

To review the status of your request and add additional comments, please visit: [Ticket 4253477](#).



GitHub (GitHub Support)

Apr 23, 2026, 11:52PM UTC

Hello,

Our apologies for the delay in getting back to you; we are currently dealing with higher than usual request volumes and are working to respond to priority issues such as yours as quickly as possible.

Sometimes our abuse detecting systems highlight accounts that need to be manually reviewed.

We've cleared the restrictions from your account, so you have full access to GitHub again.

Please let me know if you need anything else.

Best regards,
Charlie



Artiom Kovnatsky

Apr 7, 2026, 9:28AM UTC

Would you like to provide any additional information or context that would be helpful for our review of your reinstatement request?

My account has been flagged, which has disabled GitHub Copilot and halted all GitHub Actions. This is currently paralyzing my professional development work at stenon.

Please perform an immediate manual review to lift the flag and restore these services.

Thank you.

Does your claim involve content on GitHub or npm.js?

github

What is the username and repository or package name that was impacted?

skovnats

Why are you requesting reinstatement?

account-not-visible

Have you previously contacted GitHub about this claim?

no

Confirm notice

confirmed

This email is a service from GitHub Support.

[R0XRJN-X5M93]

2 attachments

**01_Evidence_Preservation_Litigation_Hold-GitHub.pdf**

138K

**02_GitHub_GDPR_DSA_Request.pdf**

207K

Artiom Kovnatsky <skovnats@gmail.com>

Mon, Jul 27, 2026 at 11:11 AM

To: privacy@github.com

Cc: GitHub Developer Support <developer@githubsupport.com>, dpo@github.com, legal@github.com

GitHub

Subject: Formal Notice: Impending Data Access Deadline (GDPR Art. 15 / DSA)

Dear GitHub Legal and DPO Team,

This is a formal notice regarding my comprehensive data access request submitted on 26.06.2026 11:11 CET. The 30-day statutory deadline under Article 15 GDPR expires on July 26, 2026, at 11:11 CET.

Please be advised of the following requirements for full compliance:

1. **Completeness:** The dataset must be delivered in full. This explicitly includes all server logs, system metadata, automated rejection parameters (specifically including all Error 550, 404 and other relevant logs), and unredacted internal and external correspondence concerning my identity and the SVE framework.
2. **No Partial Disclosures:** Any incomplete delivery or generic boilerplate response will be treated as immediate, willful non-compliance.
3. **Extensions and Statutory Justification:** Any attempt to invoke the additional two-month extension under Article 12(3) GDPR will be strictly rejected unless it is accompanied by a formal, written statement signed by your Data Protection Officer (DPO). This statement must explicitly specify the exceptional circumstances and technical complexity justifying the delay. Generic corporate notifications or automated templates will not be recognized as a valid statutory extension.
4. **Certificate of Completeness:** I require a formal, signed declaration from your Data Protection Officer (DPO) or an authorized legal representative, explicitly confirming under professional liability that the disclosed dataset is exhaustive, complete, and that no further relevant personal data, server logs, or metadata remain within any active or archived systems of your organization.
5. **Data Destruction / Retention Audit:** In the event that any requested system logs, metadata, or correspondence have been deleted prior to this notice, you are required to state the exact timestamp of destruction and provide the specific internal retention policy governing such actions.

1. This notice constitutes a **formal Legal Hold and Preservation Order**. You are hereby strictly prohibited from executing any automated or manual data retention policies, routine deletions, or system log rotations that may alter, overwrite, or destroy any historical metadata, server access logs, or routing entries related to my identity or the SVE framework from April 2026 **[and if relevant, also before April 2026]** to the present.

In the absence of complete, unredacted data delivery or a contractually binding confirmation by July 27, 2026, at 11:11 CET, I reserve the right to initiate formal regulatory complaints with the competent Supervisory Authorities (DPA) and the European Data Protection Board (EDPB) for structural violations of the GDPR and DSA, without further notice.

Furthermore, I explicitly reserve the right to escalate this matter to strategic litigation. Any continued failure to comply after the aforementioned deadline will be documented as highly likely evidence of willful non-compliance and may result in immediate enforcement actions at a time of my choosing.

Sincerely,

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Regards | MfG

Dr. Artiom A. Kovnatsky

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P.S.

For the attention of the Data Protection Officer (DPO), internal compliance monitors, and mid-level legal counsel:

Please be reminded that under EU law, any attempt to circumvent the fundamental "spirit" of the GDPR by abusing procedural technicalities, delivering curated/partial

datasets, or concealing the involvement of third parties constitutes a severe structural violation. Under the EU General Data Protection Regulation and relevant national jurisdictions, personal executive liability—including potential criminal exposure for obstruction of justice and willful destruction/falsification of evidence—cannot be shielded by corporate indemnity policies if compliance officers knowingly facilitate the concealment of unlawful processing.

Furthermore, complying with non-statutory, external, or covert third-party directives to restrict this disclosure directly breaches your professional obligations and may trigger reporting mechanisms under the EU Whistleblower Directive. The only legally sound, risk-mitigating path for all individuals handling this file is absolute transparency: delivering the exhaustive, unredacted data volume strictly in accordance with the law.

As these services are actively targeted at and processed within the European Single Market, your designated EU Representative and EU Data Protection Officer bear direct jurisdictional and strict liability under Article 27 and Chapter VIII of the GDPR. Any attempt to redirect this statutory enforcement to non-EU corporate entities or external US counsel to evade compliance will be documented as an independent, structural breach of the regulation.

P.P.S.

For the avoidance of doubt, if any ambiguities, uncertainties, or interpretive questions exist regarding the wording, specific intent, or legal scope of this notice, you are hereby requested to seek immediate clarification. I will provide an

explicit clarification within 72 hours of receiving a formal inquiry from your DPO or authorized legal counsel.

Should you fail to request such clarification within a reasonable timeframe prior to the deadline, it shall be conclusively presumed under the principles of good faith and procedural estoppel that the entire content has been fully understood in its original, intended sense. Any subsequent claims of ambiguity, misinterpretation, or vagueness will be strictly rejected as procedurally barred and waived. Consequently, all legal risks, interpretive liabilities, and subsequent enforcement responsibilities shall rest solely on your organization.

P.P.P.S.

Out of an abundance of caution and in adherence to the fundamental principles of justice, transparency, and the Duty of Candor, you are hereby requested to exercise your professional expertise proactively. If your systems contain any additional, highly relevant metadata, communication logs, or architectural traces from 2025-2026 that are material to establishing the absolute truth of this matter—even if such specific technical categories were not explicitly itemized in my prior text due to asymmetrical information—you are required by the spirit of EU law not to withhold them.

Any passive concealment of critical evidence under the guise of narrow, literal interpretation will be documented as bad faith and an intentional obstruction of impending judicial proceedings. I call upon your executive leadership and compliance

monitors to actively assist the Court, demonstrate institutional integrity, and ensure that your infrastructure is not utilized to shield structural violations of law.

[Quoted text hidden]